

Smt. Badam Shree v. State of U.P.

Allahabad High Court · Division Bench · 21 September 2017 · WRIT - C No. 44196 of 2017 · **Writ disposed; 6.5(b) objection to be decided after deposit**

HEADNOTE

A billing-dispute writ seeking consideration of a clause 6.5(b) objection and restoration of supply was disposed of without a merits finding. Subject to the consumer depositing the amount contemplated by clause 6.5(b) of the U.P. Electricity Supply Code, 2005, the competent authority was directed to consider and decide the objection or complaint within six weeks of the deposit.

FACTUAL SUMMARY

Smt. Badam Shree sought a mandamus that the competent authority consider and decide her complaint under clause 6.5(b) of the U.P. Electricity Supply Code, 2005. She offered to deposit the amount contemplated by that clause within a week and also asked that her electricity connection be restored. The first Division Bench recorded that the petition was a billing dispute, not a recovery proceeding, and directed listing before the appropriate Bench, which then heard the matter.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

time-bound decision of 6.5(b) objection on deposit

HOLDING

Subject to the consumer depositing the amount contemplated by clause 6.5(b) of the Supply Code, 2005, the competent authority shall consider and decide the consumer's objection or complaint under that clause within six weeks of the deposit. The writ is disposed of on that direction without adjudicating the bill or ordering restoration. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A billing-dispute writ seeking consideration of a clause 6.5(b) objection and restoration of supply was disposed of without a merits finding. Subject to the consumer depositing the amount contemplated by clause 6.5(b) of the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE BILLING OBJECTION

Authority only directed to consider and decide the 6.5(b) complaint; no finding on the bill. ¶ 1

NOT DECIDED — RESTORATION OF SUPPLY

Restoration was prayed for; the order does not grant it. ¶ 1